

(a) the employment of a railway servant is said to be “Continuous” except when it is excluded or has been declared to be essentially intermittent or intensive ;

(b) the employment of a railway servant is said to be “essentially intermittent” when it has been declared to be so by the prescribed authority on the ground that the daily hours of duty of the railway servant normally include periods of inaction aggregation to the fifty per cent, or more (including at least one such periods of not less than half an hour each)

(c) the employment of a railway servant is said to be “ excluded ” , if he belongs to any one of the following categories, namely : -

(i) railway servant employed in a managerial or confidential capacity ;

(ii) armed guards or other personnel subject to discipline similar to that of any of the armed police forces ;

(iii) staff of the railway schools imparting technical training or academic education;

(iv) such staff as may be specified as supervisory under the rules ;

(v) such other categories of staff as may be prescribed;

(d) the employment of a railway servant is said to be “ intensive ” when it has been declared to be so the prescribed authority on the ground that it is of a strenuous nature involving continued concentration or hard manual labour with little or no period of relaxation.

Comment

Section 130 deals with the definition of certain expressions used in chapter XIV.

131. Chapter not to apply to certain railway servants : Nothing in this chapter shall apply to any railway servant to whom the Factories Act, 1948 (63 of 1948) or the Mines Act, 1952 (35 of 1952) or the Railway Protection Force Act, 1957 (23 of 1957) or the Merchant Shipping Act, 1958 (44 Of 1958) applies.

Comment

Section 131 provides that this chapter shall not apply to a railway servant whom the Factories Act, 1948 or the Mines Act, 1952 or the Merchant Shipping Act, 1958 applies.

132. Limitations of hours of work.- (1) A railway servant whose employment is essentially inrermittent shall not be employed for more than seventy-five hours in any week.

(2) A railway servant whose employment for more than fifty hours a week on an average in a two-weekly period of fourteen days.

(3) A railway servant whose employment is intensive shall not be employed for more than forty-five hours a week on an average in a two-weekly period of fourteen days.

(4) Subject to such rules as may be prescribed temporary exemptions of railway servants from the provisions of sub-sections (1) or sub-section (2) of sub-section (3) may be made by the prescribed authority is\f it is of opinion that such temporary exemptions are necessary to avoid serious interference with the ordinary working of the railway or in cases of accident, actual or threatened, or when urgent work is required to be done to the railway or to rolling stock or in a any emergency which could not have been foreseen or prevented, or in other cases of exceptional pressure of work.

Provided that where such exception results in the increase of hours of employment of a railway servant referred to in any of the sub-sections, he shall be paid over time at not less, than two times his ordinary rate of pay for the excess hours of work.

133. Grant of Periodical rest. – (1) Subject to the provisions of this section, a railway servant –

- (a) whose employment is intensive or continuous shall, for every week commencing on a Sunday, be granted a rest of not less than thirty consecutive hours ;
- (b) whose employment is essentially intermittent shall, for every week commencing on a Sunday, be granted a rest of not less than twenty – four consecutive hours including a full night.

(2) Notwithstanding anything contained in sub-section (1), -

- i. any locomotive or traffic running staff shall be granted, each month, a rest of at least four periods of not less than thirty consecutive hours each or at least five periods of not less than twenty – two consecutive hours each, including a full night ;